

1 ENGROSSED HOUSE
2 BILL NO. 3386

By: Clinton of the House

3 and

4 Kirt of the Senate

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7 An Act relating to evictions; amending 12 O.S. 2021,
8 Section 1148.6, which relates to answer by a
9 defendant in forcible entry and detainer actions;
10 allowing defendants to request mediation prior to a
11 forcible entry and detainer hearing or trial if minor
12 children reside at the rental property; requiring
13 mediation if a mediator is present; requiring certain
14 proof of residency; providing that a court may render
15 a judgment if mediation is unavailable or
16 unsuccessful; and providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is
19 amended to read as follows:

20 Section 1148.6. A. In all cases in which the defendant wishes
21 to assert title to the land or that the boundaries of the land are
22 in dispute, he or she shall, before the time for the trial of the
23 cause, file a verified answer or an affidavit which contains a full
24 and specific statement of the facts constituting his or her defense
of title or boundary dispute. If the defendant files such a
verified answer or affidavit, the action shall proceed as one in

1 ejectment before the proper division of the district court. If the
2 defendant files an affidavit he or she shall file answer within ten
3 (10) days after the date the affidavit is filed.

4 B. In all cases in which the cause of action is based on an
5 asserted breach of a lease by the defendant, or the termination or
6 expiration of a lease under which the defendant claims an interest
7 in the property in a verified answer or affidavit, the plaintiff may
8 proceed with the forcible entry and detainer action instead of an
9 ejectment action.

10 C. In all forcible entry and detainer cases where there are
11 minor children residing at the rental property, a defendant may
12 request the court order mediation between the parties prior to a
13 hearing or trial if a mediator is present that day. To substantiate
14 this request, the defendant shall attach proof of residency for said
15 minor children, including, but not limited to, school records or
16 shot records. This provision shall not be construed to extend or
17 delay a hearing or a trial. Should mediation be unsuccessful or
18 unavailable, the court may proceed to render a judgment in
19 accordance with applicable law.

20 D. No answer by the defendant shall be required before the time
21 for trial of the cause.

22 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 25th day of March, 2026.

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4 Presiding Officer of the House
of Representatives

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6 Passed the Senate the ____ day of _____, 2026.

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8 Presiding Officer of the Senate